

SELLER'S REAFFIRMATION OF SELLER'S DISCLOSURE

ADDENDUM # _____

This update is provided to comply with Section 2572(b) of Title 6 of the Delaware Code.

SELLER: _____

PROPERTY: _____

Date of last updated Seller's Disclosure of Real Property Condition Report: _____

Date of this Reaffirmation: _____

Seller hereby reaffirms that the information contained in, and the conditions under which, the aforementioned disclosure was made. Seller hereby states that:

☐ No known changes have occurred in the property since the prior disclosure was made.

☐ The following new conditions are now being disclosed to Buyers:

SELLER DATE & TIME _____

SELLER DATE & TIME _____

Buyer acknowledges receipt of this form and agrees to accept Seller's Disclosure of Real Property Condition Report which is hereby modified.

BUYER DATE & TIME _____

BUYER DATE & TIME _____

Short Sale Addendum to Agreement of Sale

This Short Sale Addendum to Agreement of Sale is made by and between

_____, ("Seller")
And _____ ("Buyer")
For the Property known as: _____ (Property)

1. ACKNOWLEDGMENT OF SHORT SALE. The Purchase Price in the Agreement of Sale is insufficient to satisfy all debts and obligations secured by liens on the Property as well as to pay brokers' fees and other necessary and customary costs of the sale, (collectively "Liens"). The Seller's ability to convey good and marketable title per the terms of the Agreement of Sale is subject to obtaining releases on all liens and encumbrances. Because third parties will be asked to approve a lien payoff that is less than or "short of" the amount actually owed, this proposed transaction is referred to as a "Short Sale."

2. THIRD PARTY APPROVAL OF SHORT SALE. Buyer and Seller acknowledge that the Agreement of Sale is contingent upon the Seller obtaining written approval of the terms and conditions of the transaction by each third party that is asked to accept a reduced amount, (collectively "Approving Creditors"). No later than five (5) days after the acceptance date of the Agreement of Sale, Seller shall submit the Agreement of Sale and any additional documentation required, to Approving Creditors for review and approval. Sellers will attempt to obtain the consent of the Approving Creditors to approve the release of such liens for encumbrances in exchange for a payment that is less than or "short" of the amount actually owed to such Approving Creditors, in order to convey title to the property. Seller shall reasonably cooperate with Approving Creditors and promptly provide any supplemental information, papers, and/or material that may be requested, and shall bear solely any expense for submitting authorizations or documents required by the Approving Creditors. Seller shall provide Buyer with a copy of any Approving Creditors' consent within 3 days of receipt.

3. THIRD PARTY MODIFICATIONS. Buyer and Seller acknowledge that the Approving Creditors may elect to request modifications to the terms of the Agreement of Sale or refuse to approve the sale. If Approving Creditors request modifications to the Agreement, Seller shall, no later than three (3) days after Seller's receipt of the request, deliver a written notice of the requested modification to Buyer. The modifications shall not be binding upon Buyer or Seller without their mutual written consent.

4. FAILURE TO OBTAIN THIRD PARTY APPROVAL. If Seller is unable to obtain the necessary written approval of all Approving Creditors on or before _____ or Buyer and Seller have not reached agreement on any modifications as provided in Paragraph 3 of this Addendum, the Agreement of Sale shall be deemed null and void and of no further force and effect and all deposits shall be returned to the Buyer in accordance with the terms of the Agreement of Sale.

5. CREDIT, LEGAL AND TAX ADVICE. Seller is hereby notified that a short sale may have credit, legal or tax consequences. **Seller is advised to seek advice from an attorney, certified public accountant or other expert regarding the potential consequences of a short sale.** Broker cannot give credit, legal, or tax advice, and has no control over whether Approving Creditors consent to a Short Sale. Broker is not responsible for any act, omission, or decision by any Approving Creditors.

6. GENERAL PROVISIONS. In the event of any conflict between the terms of this Addendum and the terms of the Agreement of Sale, the terms of this Addendum shall govern. Except as set forth in this Addendum, all other terms and provisions of the Agreement of Sale and any other addenda, modifications or amendments thereto shall remain in full force and effect.

BUYER		Date _____
BUYER		Date _____
SELLER		Date _____
SELLER		Date _____

Short Sale Addendum to Listing Agreement

This Short Sale Addendum to Listing Agreement is made by and between

_____ (“Seller”)

And _____ (“Broker”)

for the Property known as: _____ (“Property”)

1. Seller Acknowledgement of Short Sale: Seller acknowledges that sale of the Property may result in a short sale. A short sale occurs when the Seller's net proceeds of sale are insufficient to satisfy all debts and obligations secured by liens on the Property as well as to pay Brokers' fees, and other necessary and customary costs of sale on the Property, (collectively “Liens”) and the Seller is unable to bring sufficient funds to settlement to satisfy the holder(s) of the lien(s), (collectively referred to as Creditors). As such, Seller must receive approval from Creditors to accept Seller's net proceeds of sale in exchange for releasing the liens. Seller acknowledges that Creditors' approval of short sale may take weeks or months to obtain if at all, and that the Seller's request for Creditors' approval of a Short Sale does not preclude the Creditors from initiating or consummating foreclosure proceedings. Further, the Seller acknowledges that the probability of achieving a successful Short Sale is low and subject to variables over which the Broker has no control, including but not limited to Creditors decisions.

2. Short Sale Considerations: (a) Credit and Tax Considerations: A short sale may adversely affect the Seller's credit score. In addition, even if Creditors agree to a short sale, they may not agree to forgive the debt entirely, and may require Seller to pay the difference as a personal obligation. If the loan is insured by the FHA or guaranteed by the VA, these entities may also require payment of the difference. A short sale in which a portion of the debt is forgiven may be considered a relief of debt and may be treated as income for tax purposes. The Seller is strongly advised to consult independent legal counsel and a professional tax advisor prior to entering into a contract that may result in a short sale.

(b) Options: Seller acknowledges there may be disadvantages to a short sale. Seller is advised to explore other options with Creditors, such as loan modification, revised payment plan, refinance, bankruptcy, foreclosure, deed in lieu of foreclosure, or entry into a Creditors' loan mitigation program, if available.

3. Creditors Approval: Seller acknowledges that any contract for sale of the Property shall be contingent upon the written approval of Creditors within a specified time period as negotiated between the Seller and Buyer of the Property and Seller agrees to include a written contingency in any contract which the Seller accepts which will require Creditors' approval.

4. Seller Cooperation: Seller agrees to diligently and in good faith cooperate with Broker and Creditors to obtain information regarding the amount owed on the Property and to obtain Creditors' approval of the short sale. This includes, without limitation, granting Creditors permission to speak directly with Broker and promptly providing to Creditors all requested documentation, such as authorization and release forms, W-2 forms, bank statements, hardship letter, tax returns, and similar documentation. Seller hereby irrevocably and unconditionally authorizes Broker to contact and communicate with Creditors throughout the term of the Listing Agreement concerning the application by Seller for a Short Sale and the status of Creditors' approval.

5. Authority to Disclose Existence of Short Sale: Seller is advised that prospective Buyers, Brokers and Agents are entitled to be advised that the Property is or may be a short sale and is subject to Creditors' approval. Seller hereby authorizes Broker to include the disclosure of this information in the Multiple Listing Service, any advertising, and in any Agreement of Sale.

6. Role of Broker: Seller acknowledges that Broker cannot provide legal, tax or financial advice. Broker may facilitate the transaction through communication with Creditors; however, Broker will not negotiate the terms and conditions of the short sale on behalf of the Seller. Seller or Seller's legal/financial representative(s) are solely responsible for negotiating the payoff of debts. Seller agrees to indemnify and hold harmless Broker, its officers, principals, agents and employees from any liability that may arise from Broker's facilitations of the transaction. Seller further acknowledges that Broker is not acting as a “foreclosure consultant” and has not promised to guarantee payments, guarantee to bring the loan(s) current or to stop a pending foreclosure sale.

Seller	Date

Seller	Date

Broker	Date